

25NNCV01718 25NNCV01718

County: los-angeles

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Case Number: 25NNCV01718 Hearing Date: September 1, 2026 Dept: P

[TENTATIVE] ORDER GRANTING MOTION TO DEEM REQUEST FOR ADMISSIONS ADMITTED

I. INTRODUCTION

On March 14, 2025, Plaintiff American Express National Bank ("Plaintiff") filed a complaint against Defendants Kristina Katz ("Katz" or "Defendant") and Sunlight Installation & Maintenance, LLC dba Sunlight IM ("Sunlight IM"), alleging three causes of action for breach of contract. The complaint seeks damages arising from Defendants' alleged failure to make timely payments under three separate written credit agreements executed in 2019 and 2020, with a total balance due of \$82,255.95.

On July 28, 2026, Katz filed instant motion to deem Request for Admissions (RFAs), Set One admitted. The motion is unopposed.

II. LEGAL STANDARD

A party must respond to requests for admission within 30 days after service. (Code Civ. Proc., § 2033.250, subd. (a).) If a party to whom requests for admission are directed does not provide a timely response, the propounding party "may move for an order that ... the truth of [the] matters specified in the requests be deemed admitted." (Code Civ. Proc., § 2033.280, subd. (b).) There is no time limit for such a motion, and no meet and confer efforts are required. (See id., § 2033.280; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2033.280, subd. (a).) "Unsworn responses are tantamount to no responses at all." (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.)

The court "shall" make the order that the truth of the matters specified in the request be deemed admitted unless the court "finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c); see St. Mary v. Super. Ct. (2014) 223 Cal.App.4th 762, 778-780.)

III. DISCUSSION

Defendant moves for an order deeming admitted Defendant's Requests for Admission, Set One, Nos. 1 through 5. Defendant maintains that the RFAs were electronically served on June 16, 2026, responses were due July 20, 2026, and Plaintiff had neither served responses nor requested an extension as of the filing of the motion on July 28, 2026. (Notice, p.2; Thaler

Decl., ¶¶ 3-5.) Plaintiff has not filed an opposition to the motion.

Section 2033.280 governs situations where no timely verified response to RFAs is served. Under subdivision (b), if a party fails to serve a timely response, the court “shall” deem the truth of the matters and the genuineness of documents admitted upon motion. No meet-and-confer effort or motion to compel further is required. (§ 2033.280, subd. (b); Cal. Rules of Court, rule 3.1345(b).) Plaintiff’s failure to respond also waives any objections. (§ 2033.280, subd. (a).)

Given that no response has been provided, the Court grants the motion and orders that the truth of the matters specified in the RFAs, Set One, are deemed admitted.

The Court GRANTS the motion to deem admitted request for admission, set one.

IV. CONCLUSION AND ORDER

The Court GRANTS Defendant Katz’s motion to deem RFAs, Set One admitted.

Defendant is to give notice.

Dated: September 1, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT